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Larios v. American Honda Motor, Co., Inc.

Tuesday,

August 11, 2026

[TENTATIVE] ORDER GRANTING DEFENDANT, AMERICAN HONDA MOTOR CO., INC.'S, MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE, MOTION FOR SUMMARY ADJUDICATION (8732)

I. BACKGROUND

The

complaint alleges violations of the Song Beverly Consumer Warranty Act in connection with a warranty contract issued by Defendant for a 2018 Honda Civic, purchased by Plaintiff on July 2, 2020. Defendant now moves for summary judgment or alternatively for summary adjudication of all claims on grounds the vehicle does not qualify as a new motor vehicle under the SBA, and Defendant did not issue a new vehicle limited warranty to Plaintiff. The SBA does not apply.

II. LEGAL STANDARDS

Summary judgment is proper "if all the papers submitted show that the material facts are undisputed and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., § 437c subd. (c).) The moving party defendant's burden is to show that based on the undisputed facts "one or more elements of the cause of action, even if not separately pleaded, cannot be

established, or that there is a complete defense to the cause of action."

(.) If that threshold burden is met, the burden shifts to the opposing party to show a triable issue of one or more material facts. (Code Civ. Proc., § 437c (p)(2).

A party may move for summary adjudication

"as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages. (Code Civ. Proc., § 437c (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id.)

The court applies the three-step analysis

to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents' claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (Torres v. Reardon (1992) 3 Cal.App.4th 831, 836.)

III.

DISCUSSION

A.

Defendant's separate statement

Plaintiff

argues that Defendant's separate statement does not comply with the California Rules of Court because the separate statement does not identify the particular issue to be adjudicated with references to the material facts under each issue and each cause of action. Defendant did not identify what element of a claim is being challenged and the supporting material facts relevant to that issue.

The

separate statement is not defective. The issue asserted is not complicated; Plaintiffs do not have a remedy under the SBA because they bought the vehicle used. This is the issue asserted to defeat each of four causes of action alleged: (1) Violation of Civil Code § 1793.2 (d); (2) Violation of Civil Code § 1793.2 (b); (3) Violation of Civil Code § 1793.2 (a) (3); breach of the implied

warranty of merchantability under Civil Code § 1791.1; 1794.

Requiring

Defendant to assert the same nine facts separately under each separately identified cause of action would be redundant and would serve form over substance.

B.

Applicability of the Act to used vehicles

There

is no dispute that Galpin Honda sold Plaintiffs the 2018 Honda Civic with a Certified Pre-Owned Warranty ("CPO"). (UF 1, 4.) Plaintiff does not dispute that because they purchased the vehicle used, they did not receive the full New Vehicle Limited Warranty coverage. (UF 7.)

Subpart

(b) of Civil Code section 1793.2 requires the manufacturer to commence service and repair within a reasonable time where the goods do not conform with the applicable express warranties. Subpart (d)(2) requires replacement of the vehicle or reimbursement to the buyer where the manufacturer cannot service or repair after a reasonable number of attempts. (Civ. Code, § 1793.2)

Defendant

contends all the remedies under 1793.2 do not apply to used vehicles. Section 1793.2 (d)(2) is the only subpart referencing "new motor vehicle" which includes in pertinent part, "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty ..." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 206.)

The

California Supreme Court stated that "just as with new products, the Act's remedies for failure to repair a used product in conformity with an express warranty have applicability where the express warranty accompanies the sale of the product. For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 202.)

Plaintiff

argues that Rodriguez decided one issue; namely the interpretation of “new vehicle” under § 1793.22 as it relates to a claim for violation of 1793.2(d)(2) requiring replacement if the vehicle does not conform to the warranty after a reasonable number of attempts. Only 1793.2(d)(2) refers to a “new vehicle.”

Plaintiff

argues that the other subsections at issue refer to “goods” or availability service and repair facilities and literature. Plaintiffs contend Defendant reads Rodriguez too broadly. Plaintiff argues that Rodriguez did not address remedies under the remaining subparts which refer to “goods.” (Discussed in more detail below.)

The

only statutes examined by Rodriguez was limited: “Civil Code Section 1793.2, subdivision (d)(2) gives new car buyers what is known as a refund-or-replace remedy: It requires manufacturers to “promptly replace” a defective new motor vehicle or “promptly make restitution” to the buyer when the manufacturer is “unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts. These enhanced remedies under the Act for breach of express warranty are ‘distinct from’ and ‘in addition to’ remedies otherwise available in contract under the California Uniform Commercial Code.

The

first cause of action seeks remedies under 1793.2(d) generally, without reference to subparts, alleging Defendant failed to promptly repair and/or replace or make restitution. (Complaint, ¶ 14-16). This remedy falls under subpart (d)(2) which requires a “new vehicle” under Rodriguez.

Plaintiffs

argue that Defendant issued a Certified Pre-owned vehicle upon purchase. (See Plaintiffs’ arguments opposing (UF 5.) A CPO vehicle is not a “new vehicle.” (Crescencio v. Ford Motor Company (C.D. Cal. 2025) 811 F.Supp.3d 1132, 1137 [“Does a manufacturer’s “Certified Pre-Owned” warranty, issued at the time of the sale of a used car, qualify as a manufacturer’s “new car warranty” under Civil Code section 1793.22(e)(2) as interpreted in Rodriguez II? The Court concludes it does not.”])

Accordingly,
adjudication of the first cause of action is granted as it seeks the repair and
replace remedy under subpart(d)(2) is GRANTED.

C.

Adjudication of the second cause
of action under 1793.2(b) (time limit for service and repairs) and the third
cause of action 1793.2 (a)(3) failing to provide literature.

Section

1793.2 generally applies to “every manufacturer of consumer goods” or its agent
for which the manufacturer made an express warranty. (Civ. Code § 1793.2(a),
(d)(1).) Plaintiffs argue that the subparts at issue are still viable because
they refer to “goods” and not “new vehicles.”

Even

if the other subparts of 1793.2 refers to goods, the statutory definition of
“consumer goods” is “any new product or part thereof that is used, bought,
or leased for use primarily for personal, family, or household purposes, except
for clothing and consumables.” (Civ. Code, § 1791(a).

Additionally, the SBA expressly provides remedies for used goods under a separate
section (1795.5), a claim that Plaintiff did not allege. The complaint measures the materiality of the facts tendered in a
defendant's challenge to the plaintiff's cause of action.’ [Citation.]” (Eriksson v. Nunnink (2011)
191 Cal.App.4th 826, 848.) Section
1795.5 is not material to Plaintiffs' complaint.

A

second reason these causes of action fail is that 1793.2 imposes liability on
the manufacturer. Defendant argues that Galpin Honda, the seller is a wholly
independent entity from Defendant and operates as an independently owned and
operated dealer. (UF 6.) David Gillum is the General Manager for Galpin Honda
(Gillum decl., ¶ 1.) Based on his
personal knowledge, it is separate from Defendant and is independently owned. (Id.
¶ 2). Plaintiffs' objections to the declarations are overruled. Who owns the
dealership is not a legal conclusion.

To

dispute this material fact, Plaintiff offers the fact that Honda issues CPO
warranties with Honda's sale of their vehicles. Plaintiffs' request for

judicial notice of Honda's certified pre-owned vehicle program downloaded from the internet is denied. First, judicial notice is not permitted as the information is not beyond dispute. (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 889 ["We know of no 'official Web site' provision for judicial notice in California. ... Simply because information is on the Internet does not mean that it is not reasonably subject to dispute."].) Secondly, it is irrelevant as there is no evidence that this CPO was the one issued to Plaintiff or that the manufacturer issued the CPO to Plaintiff.

Plaintiff's

evidence does not controvert the contention that Galpin is independent from the manufacturer. Plaintiff does not otherwise show that Galpin is a representative of the manufacturer. (UF 6.) Plaintiff signed the purchase agreement issued by Galpin Honda. (Gillum decl., Ex. A.)

Accordingly,

adjudication of the second and third causes of action is GRANTED.

D.

Fourth cause of action for breach of the implied warranty under Civ Code §1791.1 and §1794.

Section

1791.1 states that there is an implied warranty of merchantability that applies to goods. (Civ. Code, § 1791.1.) As previously noted, "goods" is defined as "new goods." Section 1794 governs buyers' measures of damages and recovery of penalties, costs and expenses. (Civ. Code, § 1794.) There is no dispute that Plaintiffs bought the car used from Galpin who is independently owned. Therefore, whatever warranty was issued at the time of sale was not "new" and was not made by Defendant. This precludes the claim as alleged against Defendant.

Defendant

anticipates that Plaintiffs will argue in opposition that they have a remedy under Civil Code § 1795.5 which imposes obligations on the distributor or retail seller with respect to used consumer goods. (Civ. Code, § 1795.5.) Plaintiffs' opposition cites that section. (Opp. P. 11.) Plaintiff did not assert a claim under that section. Plaintiff did not sue Galpin Ford to the extent it is the "distributor or retail seller" for purposes of the statute.

E.

Plaintiffs' request for
continuance.

If the opposing party

shows by declaration that essential evidence "may exist but cannot, for reasons stated, be presented, the court shall deny the motion" or continue it for a reasonable period, or "make any other order as may be just." (Code Civ. Proc., § 437c (h).) The declaration supporting a continuance must show "(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts." (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.)

Plaintiffs argue that

they need to take the deposition of the person most knowledgeable to controvert Defendant's contention that the CPO warranty is not a "new vehicle" warranty. Plaintiffs contend this will establish the existence, identity, and terms of the manufacturer-issued warranty that accompanied the sale of the Subject Vehicle.

As noted previously a

CPO vehicle is not a "new vehicle." (Crescencio v. Ford Motor Company (C.D. Cal. 2025) 811 F.Supp.3d 1132, 1137.

This is a legal issue not a factual one. Moreover, "[a] good faith showing that further discovery is needed to oppose summary judgment requires some justification for why such discovery could not have been completed sooner." (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 257.

Plaintiffs requested

continuance via ex parte application which the Court denied. (M.O. 7.16.26.) After reviewing Plaintiffs' efforts to complete discovery, the Court determined that Plaintiffs offered no explanation for why discovery could not have been propounded earlier. While Plaintiffs largely attribute the delay to Defendant's continued objections, Plaintiffs did not explain at that time or now why Plaintiffs did not seek court intervention at the time.

IV.

CONCLUSION

Based on the foregoing,

Defendant's motion for summary judgment is GRANTED.